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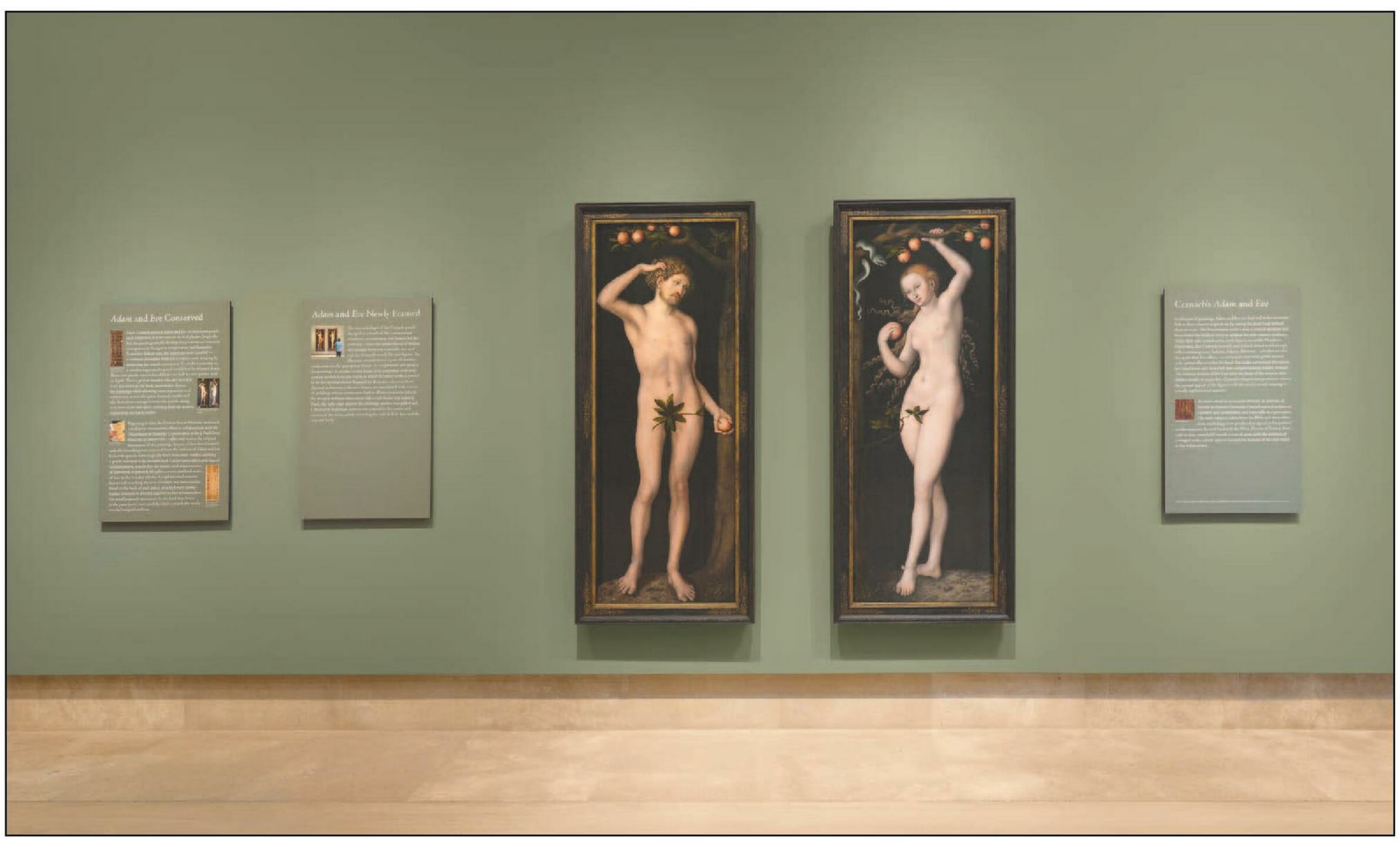
Preservation or exacerbation

New laws trigger fresh legal fight over Nazi-looted art

DEEPA BHARATH
Associated Press



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This undated photo provided by the Norton Simon Art Foundation on Friday, Sept. 18, 2026, shows two oil paintings, "Adam and Eve," painted in 1530 by Lucas Cranach the Elder, on display in the Norton Simon Museum in Pasadena, Calif.

LOS ANGELES — Jewish heirs of Holocaust victims and their representatives have filed two lawsuits in California staking their claims to Nazi-looted paintings that still hang on the walls of prominent museums in Los Angeles and Auschwitz.

This pair of lawsuits are the first to be filed after the recent passage of laws by California and Congress, which strengthen U.S.-based claims to artwork that were forcibly taken from Jewish families during World War II.

One lawsuit was filed in Los Angeles Superior Court on Monday by the Jewish Federation of Greater Los Angeles and its board chair Daniel Gryczman against Norton Simon Museum in Pasadena for the return of "Adam and Eve." These are two life-size oil-on-panel masterpieces created by Lucas Carnach the Elder in 1530.

The other lawsuit was filed in federal court in Los Angeles the same day by the daughters of the late Dinah Gottliebova Babbitt, a Holocaust survivor and California-based animator who was held in Auschwitz. It demanded the return of watercolors of fellow prisoners that the artist was forced to paint for Josef Mengele, a Nazi physician who had earned the nickname the "Angel of Death."

Spokespersons for both museums say the museums legally hold titles to the works, and intend to continue displaying them to the public. The lawsuits don't specify the monetary value of the paintings.

ARTWORKS PIT JEWISH FAMILIES AGAINST MUSEUMS

The issue of Nazi-looted art is an emotional, legally and ethically charged topic that pits Jewish families that have suffered inter-generational trauma against museums that say they are trying to preserve a painful, yet important, chapter of history. Between 1933 and 1945, the Nazi regime orchestrated the largest art theft in world history, seizing over 600,000 works of art across Europe from Jewish families, collectors and museums. Decades later, many of these masterpieces reside in prominent museums around the world, making the push for their recovery more complex than a simple property dispute.

Rabbi Noah Farkas is president and CEO of the Jewish Federation of Los Angeles, the organization to which Marei von Saher, sole heir of Dutch Jewish art dealer Jacques Goudstikker, has signed over her rights. The paintings were seized from Goudstikker's collection by Hermann Goring, Adolf Hitler's second-in-command and changed a number of hands before being sold in the 1960s to the Pasadena Museum of Modern Art, which was renamed Norton Simon Museum in honor of its benefactor.

Farkas said the federation plans to use most of the net proceeds from the recovered art to provide much-needed help to the about 2,500 Holocaust survivors living in the Los Angeles area.

"These are incredibly beautiful European masterpieces stolen from a Jewish family to enrich the Nazi party and fund the war and death machine against the people," he said. "It's our honor to take on this role on behalf of the community and use most of the proceeds to help these elderly survivors live out the last years of their lives in dignity, comfort and peace — something their family members were denied during the Holocaust."

Marei von Saher, in a statement, said she is grateful to the Jewish organization for taking up her family's cause.

"This effort represents a meaningful step toward justice for Holocaust survivors and victims of Nazi era atrocities," she said.

NEW LEGISLATION GIVES LAWSUITS SECOND WIND

California Assemblyman Jesse Gabriel, D-Woodland Hills, wrote Assembly Bill 2867, signed by Gov. Gavin Newsom in September 2024, which requires that the state law must apply in lawsuits brought by California residents or their heirs to recover art seized during the Holocaust or during other acts of persecution. Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the legislation in response to a federal court ruling, which allowed the state-owned Thyssen-Bornemisza National Museum in Madrid to keep a multimillion-dollar Camille Pissarro impressionist masterpiece.

That painting had been taken by the Nazis from the Cassirer family in 1939. This case, which prompted this new law, is expected to be heard in federal court in California next month.

Gabriel said it's time for museums to "do some deep introspection on whether they want to be on the right side of history."

MUSEUMS WANT TO PRESERVE PAINTINGS FOR POSTERITY

Norton Simon Museum released a statement pointing out that a federal court in 2018 unanimously determined that the museum had proper title to the Cranach paintings. In May 2019, the U.S. Supreme Court declined to get involved in the case, leaving in place lower court rulings.

They said the Cranach paintings, which originally belonged to the Stroganoff family, were put up for sale in 1931 by the Soviet Union in an illicit auction in Berlin where they were purchased by Goudstikker. After a complicated journey, the paintings were sold to the museum by a Stroganoff family descendant. The museum later restored and preserved the pieces.

"For nearly 50 years, they have been on view at the Norton Simon Museum and will continue to be accessible to the public for years to come," the statement said.

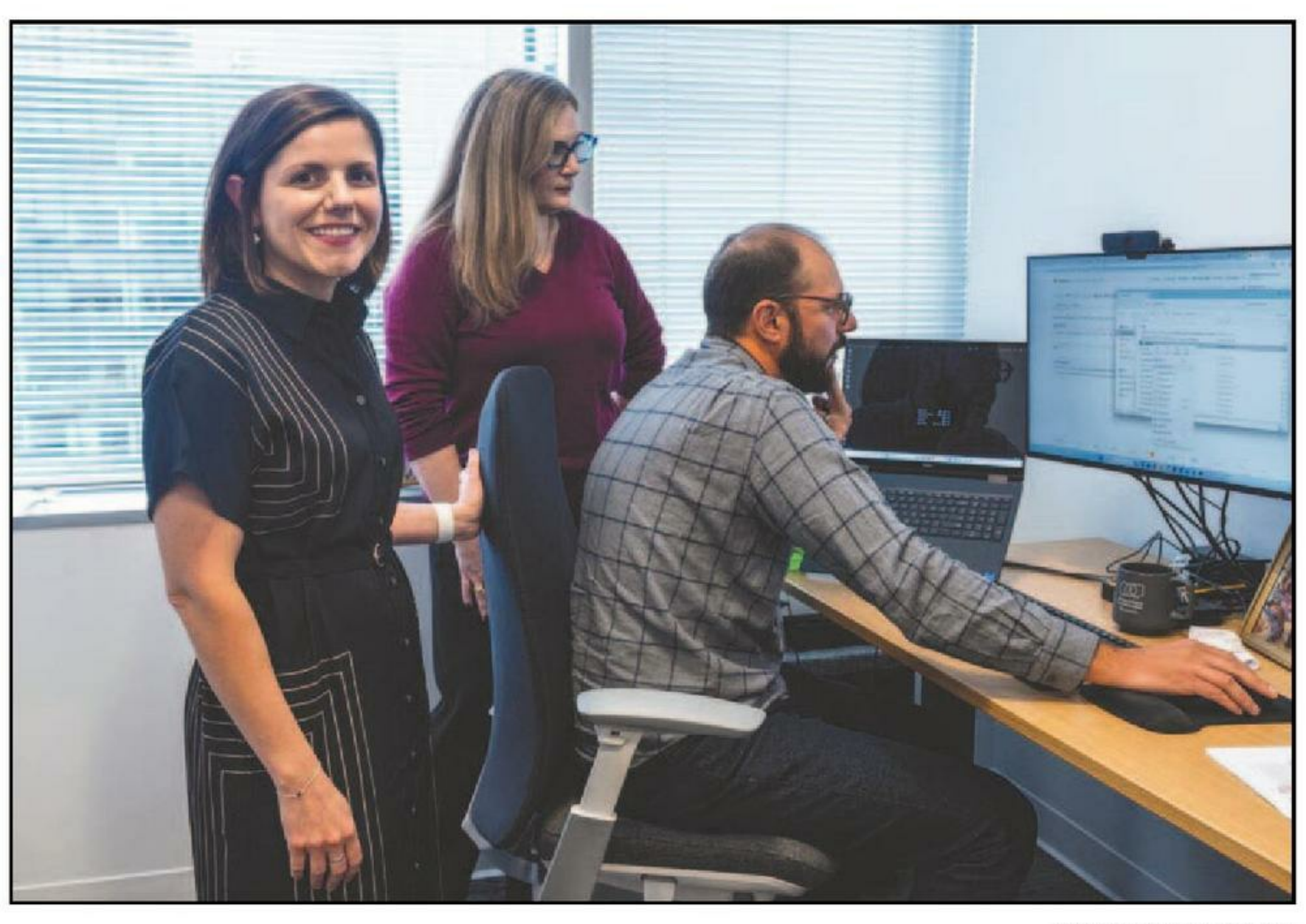
Pawel Sawicki, a spokesperson for the Auschwitz Memorial, said the watercolors of Roma victims that Gottliebova Babbitt was forced to paint by Mengele to document his horrendous experiments and racial research, "must remain in the Memorial" to document the man's crimes. He said these paintings must not be mischaracterized as "Nazi-looted art" because Gottliebova Babbitt painted them against her will as a prisoner and therefore didn't have ownership of the watercolors.

While he understands the family's sentiments, Sawicki said the portraits of Roma and Sinti victims are among the few remaining documents of Mengele's criminal experiments and should be treated as unique documents related to the history of the Auschwitz concentration camp.

"While fully respecting the rights of people who created some of the documents here, we are of the opinion that any loss in the collections of the Memorial will constitute irreparable harm," he said. " … The loss of even the smallest part of the documentation is an irreparable loss and blemish on the memory of the victims of Auschwitz."

Smithsonian using AI to connect artifacts

STEVEN SLOAN
Associated Press



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Smithsonian Institution's Chief Digital and Innovation Officer Becky Kobberod, from left, and her team Sara Snyder, director of Digital Experience and Data Scientist Mike Trizna, gather in Trizna's office Sept. 29 in Washington.

WASHINGTON — The distance in the march from the American Revolution to the age of artificial intelligence is almost beyond comprehension. But leaders of the Smithsonian Institution are using AI to bridge the divide.

As the United States celebrates its 250th anniversary of independence, Smithsonian leaders are turning to AI to better understand items in its collection tied to the fight that led to the country's founding.

The goal is to allow the public and scholars to both search the institution's collection and draw connections across the Smithsonian and other organizations, such as the Library of Congress, to gain a deeper sense of how communities formed and functioned at the nation's birth.

Since researchers on the project, known as Revolution Crossroads, began applying AI models in the spring, they have quickly drawn links that would have previously required extensive manual searches across multiple catalogs. They located, for instance, a silversmith who was running newspaper advertisements for a creamer around 1774, similar to one held at the Smithsonian's National Museum of American History.

The ultimate ambition is to scour records and surface new stories about people whose lives have faded away over the centuries.

"An ideal scenario is that we get to a place where we're actually adding to the public record," said Becky Kobberod, the chief digital and innovation officer at the Smithsonian. "Maybe they're not Thomas Jefferson or George Washington, but they did live in a community and build that community, and that name is now known."

Since its founding in 1846, the Smithsonian has curated the nation's history and culture across an operation that now spans 21 museums and galleries, including the National Zoo. It's a role that's taken on new significance as Republican President Donald Trump has questioned some of the institution's portrayals.

Kobberod's team has identified about 10,000 objects centered on people who lived during the 40-year period from 1770 to 1810. They have had to digitize — and in some cases redigitize — the objects to make them more accessible to AI. The public can search the records online.

For Natalie Buda Smith, the director of digital strategy at the Library of Congress, the project is a reminder that these institutions are deeply engaged in rapidly evolving technology. This work, she said, can help people researching materials who don't know whether to begin at the Smithsonian, the Library of Congress or somewhere else.

The creamer example "illustrates that there's a richness out there and you might find part of the story at the Smithsonian and part of the story at the library," she said. "Open up those doors to people so they can understand, because they found it in the Smithsonian doesn't mean it's the end of the story."

The work is unfolding at a sensitive time in the debate over how to properly harness AI. Some of the industry's top leaders have issued increasingly dire warnings about the technology's potential harm. Many were in Washington this week, where they met with Trump and signed a voluntary accord for reviews. Democrats and some Republicans are calling for a more robust response, including stronger regulation of AI.

Kobberod, the first person to hold her role at the Smithsonian, acknowledged a "healthy fear" of AI. She said the Smithsonian is not using any of the current frontier models that have received much of the scrutiny in recent weeks. She also emphasized the importance of human oversight in the research, noting that trained historians review the data and can recognize nuance that would be lost on an AI agent.

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